London Ambulance Service NHS
NHS Trust

Trans+ Inclusion Policy

Document Control

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Lead Director/Manager	Head of EDI & AD Workforce Strategy & Transformation
Author	EDI Partner
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Change History

Date	Change	Approved by/Comments
11/22	Formal change and review	
06/23	Reviewed and Updated	Policy Sub-Committee have approved the updated content
07/23	Minor amendments made following ExCo & EDI Committee feedback	

IMPLEMENTATION PLAN	
Intended Audience	For all LAS staff
Dissemination	Available to all staff on the PULSE
Communications	Revised policy/procedure to be announced via internal comms channels
Training	Awareness training and guidance will be provided over the coming year where needed

Monitoring	EDI Committee and the Policy-Sub Committee will monitor compliance with this Policy.

1. Introduction

1.1 This policy uses the umbrella term "trans+", which includes all transgender and non-binary identities, and has been written in collaboration with trans+ staff, the LGBT+ staff network, EDI team and system owners.

1.2 We believe that diversity and inclusion bring benefits to the Trust, and that people work better when they can be themselves and feel that they belong. We are committed to providing a working environment that is free from discrimination, harassment or victimisation and will ensure that our policies, procedures and behaviours do not treat people less favourably because of their gender identity or expression.

1.3 This policy outlines our commitments and processes for ensuring that trans+ employees, applicants and visitors are treated with dignity and respect, and are not disadvantaged in the workplace. It is essential that this policy is used in a supportive way and that the wellbeing of colleagues is seen as paramount.

1.4 All users of this policy should seek additional specialist guidance, if needed, from the EDI Team.

1.5 Please use our Manager & Employee Guides alongside this policy

2. Scope and Definitions

2.1 The policy covers all employees, contractors, temporary workers and job applicants and applies to all stages of the employment cycle.

2.2 We recognise that terminology around gender identity is evolving as awareness increases and more people are exploring and affirming their gender identity and expression at work. Transgender/Trans+ is an umbrella term describing the diverse range of people whose gender identity differs from the sex they were assigned at birth. An individual may identify as transgender but may not identify with the binary concept of woman or man eg. non-binary, gender fluid etc.

2.3 We acknowledge that gender identity, sex and sexual orientation are not interchangeable concepts. "*Gender identity*" is how a person sees their own gender and is a spectrum of identities. "*Sex*" is typically your biological sex assigned at birth, usually "male" or "female", and can be legally changed with a Gender Recognition Certification (GRC). "*Sexual orientation*" is who someone is physically and/or emotionally attracted to including, but not limited to, "gay", "lesbian", "bisexual" etc.

2.4 Managers and colleagues should respect how an individual identifies such as name, pronouns, clothing etc at work. It is always better to ask rather than assume someone's identity.

3. Accountabilities and Responsibilities

3.1 All managers and staff are responsible for adhering to this policy as well as the legal framework

3.2 All users of this policy should seek additional specialist guidance, if needed, from the EDI Team

4. The Law

The Equality Act 2010

4.1 “Gender Reassignment” is one of the nine protected characteristics covered by the Equality Act 2010. The Act protects a person from discrimination, harassment and victimisation if they are "*proposing to undergo, are undergoing, or have undergone a process (or part of a process) of gender reassignment*". There is no requirement for the person to be undergoing any medical treatment/intervention to be protected.

4.1.1 Following *Taylor vs Jaguar Land Rover* (2020) this characteristic has been confirmed to cover non-binary people.

4.2 The Act also protects anyone who is “*perceived to have the characteristic of gender reassignment or is associated with someone who has the protected characteristic of gender reassignment, such as an individual's partner or a friend*”. The Act also covers intersectional identities, for example, “gender reassignment” in additional to “religion”, “age” etc as trans+ people will have multiple protected characteristics.

4.3 An employee who treats a colleague less favourably because of “*gender reassignment*”, for example by refusing to work with them, may be held personally liable for discrimination.

Gender Recognition Act 2004

4.4 The Gender Recognition Act 2004 allows an individual to apply for a gender recognition certificate (GRC), which will give them legal recognition in their “*acquired gender*” and enables them to obtain a new birth certificate. The Act safeguards the privacy of an individual, with a GRC, by defining information relating to the gender recognition process as "*protected information*". It is a criminal offence to disclose such information without the individual's consent and can only occur in "*certain specific circumstances*" for example, the prevention or investigation of a crime,

5. Supporting staff and applicants

5.1 We recognise that job applicants and employees are not required to tell us their gender identity or gender history. The gender in which an individual presents will always be acknowledged and respected.

Recruitment

5.2 We wish to attract applicants from as wide a talent pool as possible, and the recruitment process is designed to be inclusive of applicants regardless of their gender identity. In an exceptional circumstance, where the nature of a specific role might lawfully prevent someone who is transitioning from applying, legal advice must always be sought in advance of advertising.

5.3 Job advertisements should make clear that opportunities are open to all suitably qualified applicants. If the statement makes explicit reference to not discriminating on particular grounds, this reference should extend to *all* the nine protected characteristics.

5.4 Hiring managers and interview panel members should not ask questions about an applicant's gender identity or history.

5.5 The requirement to provide proof of identity to confirm the right to work in the UK can be particularly sensitive for trans+ applicants whose identification documentation may be in their previous name(s). We will always ensure that an applicant is made aware of the full range of permissible identification documents and that the process of checking is handled sensitively and with respect for the privacy of the individual.

5.6 Where an individual's documentation reveals their previous name(s) this information will be kept confidential and stored securely with the permission of the individual and in accordance with our data protection policy. The same approach will apply where an applicant is required to present qualification certificates before a job offer is confirmed and the certificates may be in the applicant's previous name.

5.7 Care should be taken in seeking references. The applicant's gender identity and/or expression may have changed throughout their employment history – in such circumstances, the correct name/pronouns should be agreed with the candidate before contacting any referees.

5.8 Similarly, when providing references for an external employer, the LAS should use the name and gender as stated by the organisation requesting the reference. If there is any doubt, then the individual concerned should be contacted before the reference is provided.

5.9 Regarding any DBS checks, a confidential process exists for trans+ candidates. Information is available here. The Recruitment team only need to see the DBS and do not need to know which route this has been acquired through.

Employment

5.10 An employee's gender identity will not have a bearing on any employment decisions or access to benefits, except where permitted by law. For example, an individual who has transitioned, but does not have a GRC, may be required to disclose their gender history for insurance and pension purposes.

5.11 Where pension providers request disclosure of an individual's gender identity, we will ensure that this requirement has been checked with the underwriter and the requirement is made clear in any scheme information provided to employees. In such circumstances, the employee's written consent will be obtained before disclosing their gender history and status.

5.12 We will take all necessary steps to ensure that an individual's change of name is respected. Whether intentional or not, consistently addressing someone by their "previous name", known as "*dead naming*", can negatively impact on the person's sense of belonging and wellbeing.

5.13 Legally recognised documentation e.g. Deed poll, statutory declaration, GRC, passport etc. is not required to enable someone to change their "*known as*" name within the Trust. However, we may ask an individual if they have such documentation to verify a name change, particularly if this is linked to HMRC and other external bodies which may require name changes to have been legally made. Name change process can be found here

5.14 Colleagues should always respect an individual's pronouns which may include, but are not limited to, "he/him", "she/her", "they/them", "he/them".

5.15 Consistently addressing a trans+ employee by their previous name and/or an incorrect pronouns may amount to harassment and will be dealt with accordingly via the Resolution Framework and other appropriate policies.

6. Transitioning in the workplace

6.1 It may be a difficult step for an individual to approach their manager/team/someone at work to tell them they are considering or planning to transition. “Transition” is a broad term referring to when a person seeks to make social (name, pronouns, clothes etc.) and/or medical (therapy, surgeries, medication etc.) steps to reaffirm their gender identity.

6.2 If a member of staff does not feel that they can approach their manager to discuss their identity and/or transition, then they should approach a trusted manager/colleague, the LGBT+ Staff Network and/or the Wellbeing Team to discuss next steps and be offered support.
Please look at our Manager’s Guide and our Trans+ Guide for additional advice and guidance.

6.3 An employee who is transitioning may wish to be redeployed on a temporary or permanent basis. This may be because: the individual is in a public-facing role and wishes to avoid having to answer questions from the public about their gender identity; or the role involves particular tasks that will be difficult to undertake if undergoing a particular type of treatment (for example, hormone therapy that causes fatigue). Requests to be redeployed will be discussed with the employee and, where possible, we will seek to accommodate the employee's wishes. This will include agreement on whether the redeployment is temporary or permanent and with no pressure on an individual to change jobs, or have assumptions made about their capability or wishes.

Medical appointments

6.4 Discussions should take place with anyone undergoing medical intervention, including the likelihood of the amount of time required away from work. Any requests in relation to trans+ care should be managed in the same way as any other planned surgery or medical treatment via the Supporting Attendance Policy

6.5 Where possible, flexibility should be given to individuals who may need to take holiday or rearrange working hours in order to attend additional appointments outside of work. This is especially relevant for trans+ colleagues, as often appointments relating to trans+ healthcare can have extremely long waiting lists (often years-long) and very limited flexibility for change.

Changing personal details

6.6 Discussions should take place with the employee regarding the expected phase(s) of changing name(s), personal details and/or gender. These discussions should include whether the employee wishes to inform colleagues themselves or would prefer others to do this on their behalf. A guide on how to make changes within our systems is available here and additional guidance for managers and colleagues can be found here.

Communication with colleagues

6.7 Where an employee transitions while working with us, we will work together with them to agree who will be told and by whom, and when and how this will happen. The most important consideration is that the employee feels safe in the workplace and has full control and transparency as to what happens regarding their transition.

6.8 The employee may wish to tell colleagues about their transition themselves or may prefer for this to be done by someone else on their behalf. We will encourage the individual to do what is best for them and, if the employee is not ready to tell anyone, we must respect the employee's wishes. The employee is entitled to privacy and colleagues and managers should seek to protect them from intrusive enquiries.

Please read through the manager's guide and colleague's guide for more information and advice.

Use of changing and bathrooms facilities

6.9 In discussion with the manager, there should be an agreement reached as to which facilities would be appropriate for the staff member in both the short and longer term. This would often be that the individual should use the facilities that best align with their identity, although some may prefer to use gender neutral/individual spaces. The manager should ensure that the individual is supported and feels physically and psychological safe, and that other colleagues feel the same. Decisions should be appropriately communicated, discussed and explained as/if necessary to other staff and any questions should be directed through the manager rather than the trans+ colleague, unless expressly agreed otherwise.

Should any challenging conversations occur, or further support and advice be needed, please contact the EDI Team and/or LGBT+ Network

Dress code

6.10 It may be that some flexibility is required around dress codes to accommodate the process of transition. As the process may take some time, this is something that may be discussed with the employee at such a time that uniforms are re-ordered and should be the uniform/clothing the employee prefers.

7. Bullying and harassment

7.1 LAS does not tolerate harassment, bullying or victimisation and such behaviour may result in action being taken under our Resolution Framework.

All employees are made aware of our policy on investigating claims of bullying and harassment and the procedures in place for handling complaints. Any complaints of bullying and harassment are taken seriously and dealt with promptly.

The primary routes for raising/reporting concerns are firstly through your manager(s) and then, if required through the Resolution Framework and, lastly, Freedom to Speak Up.

8. Confidentiality

8.1 All records that include details of an employee's gender history will be destroyed in a secure manner, unless there is a specific reason for retaining them (in which case the employee will be made aware of this and told why). Where other people in the organisation need to be aware of the employee's transition to make a change to a particular record, we will obtain the employee's consent, and restrict the information to those who need to know.

8.2 Where there is a need to retain documentation that shows someone's gender history, this information will be stored confidentially in line with the requirements of data protection legislation. The information will be held electronically in a secure environment (for example, password protected) that can be accessed only with the consent of the individual concerned. Only named individuals will be allowed to access this information and those individuals will be made aware that breaches of confidentiality could be unlawful and result in disciplinary action.

8.3 Care will be taken to ensure that any search of the organisation's records by others will not inadvertently reveal an employee's gender history.

8.4 It is an individual's decision as to whether they choose to reveal their gender status and we will respect their right to privacy. The right to privacy will apply regardless of whether or not the individual has a GRC.

8.5 Where an employee discloses information about their gender history or status (verbally or in writing), this will be treated as confidential. This includes any information provided to the line manager or HR. Such information will not be shared with others, unless there is a specific reason and then not without the written consent of the individual concerned. Disclosure of the gender history of someone with a GRC without their specific permission would normally be a criminal offence.

8.6. Information relating to an employee's gender status or history will not be disclosed to a third party without the individual's consent, for example when responding to a reference request.

9. Key Contacts, Policies and Guidance

Internal Support	
EDI Team	londamb.edimailbox@nhs.net
LGBT+ Staff Network	londamb.lgbt@nhs.net
Wellbeing Team	londamb.laswellbeinghub@nhs.net
Key Policies & Guidance	
Freedom to Speak Up	Policy TP003 on Freedom to Speak Up - LAS (interactgo.com)
Resolution Framework	Policy TP151 on Resolution Framework - LAS (interactgo.com)
Name Change Guide	Trans Inclusion Policy (HR007) Page
Trans+ Policy: Managers Guide	
Trans+ Policy: Colleague's Guide	
Leave Policy	Annual Leave Policy TP159 - LAS (interactgo.com)
Recruitment & Selection	Policy HR005 on Recruitment and Selection - LAS (interactgo.com)